IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(through Hybrid Mode)
COURT-I

Item No. 7
COMP. APPL/243(CH)2024
And
CP(CAA) No. 35/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:

ADIDAS INDIA PRIVATE LIMITED
Registered Office: Plot No.53, Sector-32,
Institutional Area, Gurugram-122001, Haryana.
CIN:U19201DL1996PTC076591
PAN: AAACA8513D

...Transferor Company/Petitioner Company No.1

ADIDAS INDIA MARKETING PRIVATE LIMITED
Registered Office: Plot No.53, Sector-32,
Institutional Area, Gurugram-122001, Haryana, India.
CIN: U74899DL1995PTC074855
PAN: AAACA5313P

...Transferee Company/Petitioner Company No. 2

Under Section: 230-232, CA 2013, Rule 11 of NCLT, 2016

Order delivered on 12.03.2025

CORAM:

SH. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner : Mr. Abhinav Sood, Advocate.

ORDER

Learned counsel for the petitioner has filed compliance affidavit vide diary No.02661/2 dated 03.10.2024, checklist vide diary No.02661/1 dated 10.09.2024 and affidavit of service vide diary No.04043/2 dated 18.07.2024. The same are taken on record.

Chairperson report of unsecured creditors has been filed through Sh. Akshay Bhan, Senior Advocate vide diary No.04043/3 dated 05.08.2024. The same is taken on record.

Second Motion Notice

1. Proceedings under Section 230-232 of the Companies Act, 2013 have been instituted.
2. Heard the Ld. Counsel / Authorized Representative of the Petitioner. The First Motion Petition order was passed on 07.06.2024 in CA(CAA) No.3/Chd/Hry/2024. In terms thereof, the meeting of equity shareholders, secured creditors and unsecured creditors of applicant-company No. 1 were dispensed with. The meeting of equity shareholders and secured creditors of applicant company No. 2 were also dispensed with.
3. The meeting of unsecured creditors of applicant-company No. 2 was convened. The report dated 05.08.2024 of the Chairman approving the scheme has been placed on record.

4. Section 230 (5) of the Companies Act, 2013 and Rule 8 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 provides for issuance of Notice on such Petitions.

5. Section 230 (5) and relevant part of Rule 8 read as follows:-

"230. Power of compromise or make arrangements with creditors and members

(5) A notice under sub-section (3) along with all the documents in such form as may be prescribed shall also be sent to the Central Government, the income-tax authorities, the Reserve Bank of India, the Securities and Exchange Board, the Registrar , the respective stock exchanges, the Official Liquidator , the Competition Commission of India established under sub-section (1) of section 7 of the Competition Act, 2002, if necessary, and such other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement and shall require that representations, if any, to be made by them ***shall be made within a period of thirty days from the date of receipt of such notice, failing which, it shall be presumed that they have no representations to make on the proposals.***

Rule 8

8. Notice to statutory authorities.— ***(1) For the purposes of sub section (5) of section 230 of the Act, the notice shall be in Form No. CAA.3, and shall be accompanied with a copy of the scheme of compromise or arrangement, the explanatory statement and the disclosures mentioned under rule 6, and shall be sent to.- (i) the Central Government, the Registrar of Companies, the Income tax authorities, in all cases; (ii) the Reserve Bank of India, the Securities and Exchange Board of India, the Competition Commission of India, and the stock exchanges, as may be applicable; (iii) other sectoral regulators or authorities, as required by Tribunal.***

(2) The notice to the authorities mentioned in sub-rule (1) shall be sent forthwith, after the notice is sent to the members or creditors of the company, by registered post or by speed post or by courier or by hand delivery at the office of the authority.

(3) If the authorities referred to under sub-rule (1) desire to make any representation under sub-section (5) of section 230, the same shall be sent to the Tribunal within a period of thirty days from the date of receipt of such notice and copy of such representation shall simultaneously be sent to the concerned companies and in case no representation is received within the stated period of thirty days by the Tribunal, it shall be presumed that the authorities have no representation to make on the proposed scheme of compromise or arrangement."

Rule 16

16. Date and notice of hearing.—

(1) ***The Tribunal shall fix a date for the hearing of the petition, and notice of the hearing shall be advertised in the same newspaper in which the notice of the meeting was advertised, or in such other newspaper as the Tribunal may direct, not less than ten days before the date fixed for the hearing.***

(2) ***The notice of the hearing of the petition shall also be served by the Tribunal to the objectors or to their representatives under sub-section (4) of section 230 of the Act and to the Central Government and other authorities who have made representation under rule 8 and have desired to be heard in their representation"***

6. In view of the above, notice to the authorities specified in Section 230(5) of Companies Act 2013 read with Rule 8 and Rule 16 of the Companies (Companies Arrangements and Amalgamation) Rules 2016 for submitting their representation, if any. Notice to be served by all modes and affidavit evidencing proof of service be filed within 7 days.

7. In addition to the service of notice as above,

7 (a). Petitioner(s) are directed to take steps for issuance of notice in Form CAA3 and to the Central Government through Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi to be sent through email to the concerned email address mentioned in Annexure-I.

7 (b). Notice to the concerned Registrar of Companies to be sent through the appropriate email addresses mentioned in Annexure-II.

7 (c). Notice to the concerned Official Liquidator to be sent through the appropriate email addresses mentioned in Annexure-III.

7 (d). Notice to the Reserve Bank of India.

7 (e) Notice to the concerned Income Tax Authorities through the appropriate email addresses mentioned in Annexure IV.

8. Notice is also directed to be published in two prominently circulating national daily newspapers namely Financial Express (English) and Jan Satta (Hindi) in terms of Rule 7 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 and an affidavit evidencing proof of publication be filed.
9. All the authorities on receipt of the notice, are directed to file their representation, if any, within 30 days from the date of receipt of the notice. In case, no representation is received, it will be presumed that they have no objection to the proposal.
10. List on 02.05.2025.

Sd/-
(SHISHIR AGARWAL)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

Annexure-I

i. rd.east@mca.gov.in
ii. rd.south@mca.gov.in
iii. rd.north@mca.gov.in
iv. rd.west@mca.gov.in
v. rd.northwest@mca.gov.in
vi. rd.ser@mca.gov.in
vii. rd.northeast@mca.gov.in

Annexure-II

Sr. No.	RoC	Email ID
1	ROC HYDERABAD	roc.hyderabad@mca.gov.in
2	ROC Shillong	roc.shillong@mca.gov.in
3	ROC Patna	roc.patna@mca.gov.in
4	ROC cum OL for Bilaspur	roc.bilaspur@mca.gov.in
5	ROC Delhi	roc.delhi@mca.gov.in
6	ROC Goa	roc.goa@mca.gov.in
7	ROC Ahmedabad	roc.ahmedabad@mca.gov.in
8	ROC cum OL J&K	roc.jammu@mca.gov.in
9	ROC Bangalore	roc.bangalore@mca.gov.in
10	ROC Ernakulam	roc.ernakulam@mca.gov.in
11	ROC Gwalior	roc.gwalior@mca.gov.in
12	ROC Mumbai	roc.mumbai@mca.gov.in
13	ROC Cuttack	roc.cuttack@mca.gov.in
14	ROC Pune	roc.pune@mca.gov.in
15	ROC Puducherry	roc.pondicherry@mca.gov.in
16	ROC Chandigarh	roc.chandigarh@mca.gov.in
17	ROC Jaipur	roc.jaipur@mca.gov.in
18	ROC Chennai	roc.chennai@mca.gov.in
19	ROC Coimbatore	roc.coimbatore@mca.gov.in
20	ROC Kanpur	roc.kanpur@mca.gov.in
21	ROC Kolkata	roc.kolkata@mca.gov.in
22	ROC Uttarakhand	roc.uttarkhand@mca.gov.in
23	ROC Andhra Pradesh	roc.vijayawada@mca.gov.in
24	ROC Himachal	roc.himachal@mca.gov.in

Annexure-III

SR. NO.	DESIGNATION	ADDRESS WITH EMAIL ID
1.	Official Liquidator, Ministry of Corporate Affairs	1st Floor, Old CIA Building, Opp.GPO Comps Residency Area, Indore - 452001, Madhya Pradesh. ol.indore@mca.gov.in
2.	ROC-cum-Official Liquidator, Ministry Of Corporate Affairs.	Mangal Tower, 4th Floor, Old Hazaribagh Road, Near Kanta Toli Chowk, Ranchi – 834001 Jharkhand. ol-ranchi-mca@nic.in
3.	Official Liquidator, Ministry Of Corporate Affairs	5th Floor, 9, Old Post Office Street, Kolkata-700001 ol-kolkata-mca@nic.in
4.	Official Liquidator, Ministry Of Corporate Affairs.	1st floor, BSNL Bhawan, Pan Bazar, Guwahati - 781001, Assam ol-shillong-mca@nic.in
5.	Official Liquidator, Ministry Of Corporate Affairs	Corporate Bhawan, 3rd Floor, BMC Road, Thikkakakra(Post), Kochi-682021 Kerala ol-cochin-mca@nic.in
6.	Official Liquidator, Ministry of Corporate Affairs	Bank of India Building, 5th Floor, Mahatma Gandhi Road, Mumbai-400001 ol-mumbai-mca@nic.in
7.	Official Liquidator Ministry Of Corporate Affairs	B9th Floor, Sangam Place, Civil Lines, Allahabad-211001 ol.allahabad@mca.gov.in

8.	Official Liquidator, Ministry Of Corporate Affairs	Corporate Bhawan, 2nd Floor, 29 Rajaji Salai, Chennai-600001 Tamila nadu ol-chennai-mca@nic.in
9.	ROC-cum-Official Liquidator, Ministry Of Corporate Affairs	Corporate Bhawan, G/6-7, Residency Area, Civil Lines, Jaipur-302001, Rajastan ol.jaipur@mca.gov.in
10.	Official Liquidator, Ministry Of Corporate Affairs	8th Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110003 ol.delhi@mca.gov.in
11.	ROC cum Official Liquidator, Ministry Of Corporate Affairs	Corporate Bhawan, Plot No. 9(P), Sector-I, CDA, Cuttack-753014 Odisha ol.cuttack@mca.gov.in
12.	Registrar of Companies cum Official Liquidator, Ministry Of Corporate Affairs	Maurya Lok Complex, 4th Floor, Block A, Dak Bungalow Road, Patna-800001 Bihar roc.patna@mca.gov.in
13.	Official Liquidator, Ministry Of Corporate Affairs	1st Floor, Corporate Bhawan, Tatti Annaram, Via-Nagole GSI (SR), BandlagudaP.O. Hyderabad-500068, Rangareddy District, Telangana. ol-hyderabad-mca@nic.in

14.	Official Liquidator, Ministry Of Corporate Affairs	3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059, Guajarat ol-ahmedabad-mca@nic.in
15.	Official Liquidator, Ministry Of Corporate Affaris	Corporate Bhawan, No. 26-27, 12th Floor, Raheja Towers, M. G. Road, Bangalore, Karnataka. ol.bangalore@mca.gov.in
16.	ROC-cum-Official Liquidator, Ministry Of Corporate Affairs	Corporate Bhawan, 1st Floor, Plot No.4-B, Sector 27B, Madhya Marg, Chandigarh-160019. roc.himachal@mca.gov.in
17.	ROC-cum-Official Liquidator, Ministry Of Corporate Affairs	Jammu Office: Hall No. 405 to 408, Rail Head Complex, Bahu Plaza, Jammu-180012 AND Srinagar Office: SDA Office Complex, Ground Floor, Bemina Bypass, Srinagar-190018. roc.jammu@mca.gov.in roc.srinagar@mca.gov.in
18.	Official Liquidator, Ministry Of Corporate Affairs	New Secretariat Building, 2nd Floor, East Wing, Civil Lines, Nagpur-440001. Maharastra ol-nagpur-mca@nic.in
19.	ROC-cum-Official Liquidator, Ministry of Corporate Affairs	Corporate Bhawan, EDC Complex, Plot No.21, Patto, Panaji, Goa-403001. ol-goa-mca@nic.in

20.	Official Liquidator, Ministry Of Corporate Affairs	Plot No. 4, Goverdhan Tower, Manji Ka Hatta, Paota, Jodhpur-342006, Rajasthan. ol.jodhpur@mca.gov.in
21.	ROC cum Official Liquidator Nainital (functional at Kanpur)	10/499 B, Allenganj, Khanlasi Line, Kanpur - 208002, Uttar Pradesh
22.	ROC-cum-Official-Liquidator, Ministry Of Corporate Affairs	1st Floor, Late Shri Ashok Pingley Bhawan of Municipal Corporation, Nehru Chowk, Bilaspur, Chhattisgarh-495001. roc.bilaspur@mca.gov.in
23.	ROC-cum-Official Liquidator, Ministry Of Corporate Affairs	Mazanine Floor, 78 Rajpur Road, Office No. 259, Shri Radha Palace, Dehradun-248001, Uttarakhand. roc.uttarakhand@mca.gov.in
24.	Official Liquidator, Ministry Of Corporate Affairs	Corporate Bhawan, 2nd Floor, Plot No. 4B, Sector 27B, Madhya Marg, Chandigarh-160019. ol.chandigarh@mca.gov.in

Annexure-IV

Sr. No.	Name of Bench	Nodal Officer with Email ID
1	Principal Bench	Pr. CCIT, New Delhi Address:- C. R. Building, IN. Estate, New Delhi -110002 delhi.pccit@incometax.gov.in
2	Ahmedabad Bench	Pr. CCIT, Ahmedabad Address:- P. B. No. 211, Aayakar Bhawan, Ashram Road, Ahmedabad-380009 ahmedabad.pccit@incometax.gov.in
3	Allahabad Bench	Pr.CCIT, UP (East) Address-Aayakar Bhawan, 5-Ashok Marg, Lucknow-226001 lucknow.pccit@incometax.gov.in
4	Amravati Bench	Pr.CCIT,Andhra Pradesh & Telengana Address:- 10th Floor, C-Block, I.T. Towers, 10-2-3, A.C. Guards, Hyderabad-500004 hyderabad.pccit@incometax.gov.in
5	Bengaluru Bench	Pr.CCIT, Karnataka & Goa Address:- C.R. Building No. 1, Queen's Road, Bengaluru-560001 bangalore.pccit@incometax.gov.in
6	Chandigarh Bench	Pr.CCIT,NWR Address:- Aayakar Bhawan, Sector-17E, Chandigarh

		chandigarh.pccit@incometax.gov.in
7	Chennai Bench	Pr.CCIT, Tamil Nadu & Puducherry Address:- 121, Mahatma Gandhi Road, Nungambakkam, Chennai-600034 chennai.pccit@incometax.gov.in
8	Cuttack Bench	Pr.CCIT,Odisha Address:- Aayakar Bhawan, Rajaswa, Vihar, Bhubaneswar-751007 bhubaneswar.pccit@incometax.gov.in
9	Guwahati Bench	Pr.CCIT, NER Address:- 1st Floor, Aayakar Bhawan, Christian Basti, G.S. Road, Guwahati-781005 ner.pccit@incometax.gov.in
10	Hyderabad Bench	Pr.CCIT, Andhra Pradesh & Telengana Address:- 10th Floor, C-Block, I.T. Towers, 10-2-3, A.C. Guards, Hyderabad-500004 hyderabad.pccit@incometax.gov.in
11	Indore Bench	Pr.CCIT, M.P. & Chhattisgarh Address:- Aayakar Bhawan, 48, Arera Hills, Hoshangabad Road, Bhopal-462001 bhopal.pccit@incometax.gov.in
12	Jaipur Bench	Pr.CCIT,Rajasthan Address:- New C.R. Building, Statue Circle Bhagwan Dass Road, Jaipur

		jaipur.pccit@incometax.gov.in
13	Kochi Bench	Pr.CCIT, Kerala Address:- C.R. Building, 2nd Floor, IS Press Road, Kochi-682018 kochi.pccit@incometax.gov.in
14	Kolkata Bench	Pr.CCIT, West Bengal & Sikkim Address:- Aayakar Bhawan, P-7, Chowringhee Square, Kolkata-700069 kolkata.pccit@incometax.gov.in
15	Mumbai Bench	Pr.CCIT, Mumbai Address:- 3rd Floor, Aayakar Bhawan, Maharishi Karve Road, Mumbai-400020 mumbai.pccit@incometax.gov.in